

ABC Asks Judge to Stop Early Government Review of Its TV Station Licenses

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The TV network ABC asked a federal judge in Washington, D.C., on Tuesday to stop the Trump administration from carrying out an unusual early review of its broadcast **licenses**.

TV stations need **licenses** from the Federal Communications Commission, or FCC, to use the **public airwaves**. These **licenses** are usually renewed on a regular schedule. In April, FCC Commissioner Brendan Carr ordered eight ABC-owned stations to apply for renewal years ahead of time. According to the Associated Press, the order came just after a joke by ABC late-night host Jimmy Kimmel angered President Donald Trump.

ABC and its parent company, Disney, sued the FCC in August. The network says the early review breaks the U.S. Constitution's **First Amendment**, which protects free speech and a free press. ABC says it is being punished for content the president dislikes.

At a two-hour **hearing**, ABC lawyer Beth Wilkinson said the review is already affecting the network's news choices as the midterm elections approach. "We are watching everything that we do," she said.

A Justice Department lawyer, Dimitar Georgiev-Rommel, disagreed. He argued that the case belongs in a different court. He also said ABC had not shown real harm, because its eight **licenses** are still valid. Carr has said **broadcasters** have a duty to "operate in the public interest."

Judge Loren AliKhan asked both sides many questions but did not rule right away. She asked for more written arguments by Oct. 9 from the government and by Oct. 14 from ABC. A decision is not expected until at least mid-October.

The case is one of several legal fights between the administration and news organizations, including the Associated Press, over news coverage and access to the government.

Word Treasure

licenses -- Official permissions from the government to do something, such as run a TV station.

public airwaves -- The radio signals TV and radio stations use, which belong to the public and are managed by the government.

First Amendment -- The part of the U.S. Constitution that protects freedom of speech, religion and the press.

hearing -- A meeting in court where lawyers for each side make their arguments to a judge.

broadcasters -- Companies that send TV or radio programs over the air to the public.

Background you need

The Federal Communications Commission, or FCC, is the U.S. government agency that manages the public airwaves used by TV and radio stations.

Local stations must hold FCC licenses, which are normally renewed on a regular schedule if the station serves the public interest.

The First Amendment to the Constitution protects free speech and a free press, which limits how the government can punish news outlets for what they say.

When a company believes a government action is illegal, it can sue and ask a judge for a preliminary order to pause that action while the case continues.

Break it down

LEAD: ABC asks a federal judge to block an early FCC review of its station licenses

KEY EVENT: Two-hour court hearing in Washington, D.C., on Tuesday

+ - WHO: ABC and Disney versus the FCC and Commissioner Brendan Carr

+ - WHY: ABC says the review punishes content the president dislikes

+ - WHEN: Review ordered in April; lawsuit filed in August

EVIDENCE: ABC lawyer says news choices are already affected before the midterms

COUNTERPOINT: Justice Department says wrong court and no real harm because licenses remain valid

OPEN QUESTION: Judge AliKhan has not ruled; more written arguments due Oct. 9 and Oct. 14

Why it matters

The case tests how far the government can go in reviewing a news organization's licenses without limiting free speech. Its outcome could affect other broadcasters, not just ABC.

Test what you remember

1. What did ABC ask the federal judge to do?
 - (A) Stop an early review of its broadcast licenses
 - (B) Give it new TV stations
 - (C) Cancel the midterm elections
 - (D) Fire an FCC commissioner
2. How many ABC-owned stations were ordered to apply for renewal early?
 - (A) Fourteen
 - (B) Eight
 - (C) Two
 - (D) Five
3. Which part of the Constitution does ABC say the review breaks?
 - (A) The Second Amendment
 - (B) The First Amendment
 - (C) The Fifth Amendment
 - (D) The Tenth Amendment
4. What did the Justice Department lawyer argue?
 - (A) The case belongs in a different court and ABC had not shown real harm
 - (B) The FCC should stop all reviews
 - (C) Jimmy Kimmel should testify
 - (D) ABC should get a new license
5. Who is the judge in the case?
 - (A) Brendan Carr
 - (B) Beth Wilkinson
 - (C) Dimitar Georgiev-Rommel
 - (D) Loren AliKhan
6. When is a decision expected?
 - (A) Not until at least mid-October
 - (B) It was made Tuesday
 - (C) After the next presidential election
 - (D) Next summer

Answer key (try the quiz first!): 1: A 2: B 3: B 4: A 5: D 6: A

Questions to think about

1. **ABC and lawyer Beth Wilkinson:** Say the early review violates the First Amendment, punishes content the president dislikes and is already affecting news decisions.
2. **Justice Department lawyer Dimitar Georgiev-Remmel:** Argues the case belongs in a different court and ABC has not shown real harm because its licenses are still valid.
3. **FCC Commissioner Brendan Carr:** Says broadcasters have a duty to operate in the public interest.

MY THOUGHTS (at least 20 words):